

	Luna vs. City of Santa Ana	this case without leave to amend. Moving Defendant argues that Santa Ana Police Department, asserting is not a separate entity from Defendant City of Santa Ana. Plaintiffs concede the point by failing to respond to this argument. Further, the City of Santa Ana’s repeated judicial admissions that it is the proper party subject to all orders and relief the Court may grant also supports sustaining the demurrer. Defendants shall serve notice of this Order.
106	2024- 01407287 Mirrafati vs. California Receivership Group, Inc.	1. Demurrer to Complaint 2. Case Management Conference The general and special demurrer by Defendants California Receivership Group, Inc. (“Receivership Group”) and Mark Adams (“Adams”) (collectively, “Defendants”) to the Complaint filed by Plaintiffs Sayed Mirrafati and Mira Properties, LLC (collectively, “Plaintiffs”) is sustained in part and overruled as moot in part with 60 days leave to amend. As an initial matter, the Court notes Defendants proofs of service for their moving papers and reply did not include the server’s email address. (Code Civ. Proc., § 1013b, subd. (b)(1).) Plaintiffs opposed the demurrer without objecting to service. Subject to any objections regarding service of Defendants’ reply, the Court rules as follows. Defendants’ requests for judicial notice are granted. (Evid. Code, § 452, subd. (d).) However, the Court may not take judicial notice of the truth of the matter stated in the documents. (<i>Richtek USA, Inc. v. uPI Semiconductor Corp.</i> (2015) 242 Cal.App.4th 651, 659-660.) Judicial notice of other court records and files is limited to matters that are indisputably true. This generally means judicial notice is limited to the orders and judgments in the other court file, as distinguished from the contents of documents filed therein. (<i>Fremont Indem. Co. v. Fremont Gen. Corp.</i> (2007) 148 Cal.App.4th 97, 113.) The court cannot accept as true the contents of pleadings or exhibits in the other action just because they are part of the court record or file. Such documents are inadmissible hearsay. (<i>Day v. Sharp</i> (1975) 50 Cal.App.3d 904, 914.) Plaintiffs’ claims against Defendants arise out of Defendants efforts to collect on a judgment in Adams’ favor as a receiver in a separate action. “The rule requiring court permission to sue a receiver stems from Code of Civil Procedure section 568.” (<i>Vitug v. Griffin</i> (1989) 214 Cal.App.3d 488, 492.) Code of Civil Procedure section 568 provides as follows, “The receiver has, under the control of the Court, power to bring and defend actions in his own name, as receiver; to take and keep possession of the property, to receive rents, collect debts, to compound for and compromise the same, to make transfers, and generally to do such acts respecting the property as the Court may authorize.” “As a general proposition a receiver has no official duties and is not a proper party to any action after being discharged by the court. (<i>Brockway etc. Co. v. County of Placer</i> (1954) 124 Cal.App.2d 371, 375, 268 P.2d 524.) The discharge order operates as res judicata as to any claims of liability against the receiver in her official capacity. (<i>Aviation Brake Systems Ltd. v. Voorhis</i> (1982) 133 Cal.App.3d 230, 234, 183 Cal.Rptr. 766.)” (<i>Vitug v. Griffin</i>, 214 Cal.App.3d at 494.) “A receiver is an officer of the court possessing the property for the court...Consequently, a receiver is liable in tort solely in an official capacity, not a personal one...‘He is not personally liable for torts committed in the performance of his receivership duties; liability is in his <i>official</i>

		<i>capacity</i> only, to be satisfied from receivership funds.’...Furthermore, a receiver may not be sued without leave of court.” (<i>McCarthy v. Poulsen</i> (1985) 173 Cal.App.3d 1212, 1219 [internal citations omitted].) A court “is not required to assume jurisdiction of all controversies to which the receiver may become a party, but may upon application permit them to be determined in some other competent tribunal.... When the court cannot afford the same relief in intervention as a claimant would be entitled to in an independent action, or where by virtue of some statutory or constitutional provision a particular kind of action must be brought in some jurisdiction other than where the original special proceeding is pending, the court will undoubtedly grant leave to bring it, and it would be an abuse of discretion not to do so.” (<i>Jun v. Myers</i> (2001) 88 Cal.App.4th 117, 125 [internal citations omitted].) Here, Defendants’ collections action arose out of Adams’ receivership in the underlying action. (Complaint, ¶¶ 8 and 12.) Plaintiffs allege Adams is the president of Receivership Group. (Complaint, ¶4.) In the receivership action, Adams filed his papers under Receivership Group’s name. (Request for Judicial Notice, Exhibits 2, 3, and 4.) Accordingly, leave to commence this action is required. (<i>See, Vitug v. Griffin</i>, 214 Cal.App.3d at 493 [“The rule that claimants must apply to the court before suing a receiver is founded upon notions of judicial economy. In most cases a claimant can obtain appropriate relief in the receivership action; therefore an independent action will not be necessary.”].) Accordingly, Defendants’ demurrer is sustained with 60 days leave to amend. (<i>See, Ostrowski v. Miller</i> (1964) 226 Cal.App.2d 79, 86.) Contrary to Defendants’ contention, the Court is not without jurisdiction in the traditional sense due to Plaintiffs not first obtaining leave of court to bring this action. (<i>Ostrowski v. Miller</i>, 226 Cal.App.2d at 82; <i>Vitug v. Griffin</i>, 214 Cal.App.3d at 493.) Accordingly, the demurrer on the ground that the Court lacks jurisdiction is overruled. In light of the Court sustaining the demurrer on the ground that Plaintiffs are required to seek leave before commencing this action, the Court finds the remainder of the demurrer moot and declines to reach the merits of the general demurrer. The Case Management Conference is continued to August 11, 2025 at 10:00 a.m. in Department C27 Defendants shall give notice.
107	2022-01262979 Patel vs. Amanda Rafi, DMD, A Professional Dental Corporation	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Production 3. Motion to Deem Facts Admitted (1) MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES (2) MOTION TO COMPEL PRODUCTION (3) MOTION TO COMPEL RESPONSES TO REQUESTS FOR ADMISSION Plaintiff Paris Patel moves to compel Defendant Amanda Rafi, DMD, A Professional Dental Corporation’s verified responses to her Form Interrogatories, Set 2, Requests for Production of Documents, Set 3, and Requests for Admission Set 2. The subject discovery was propounded on Defendant on 9/13/24. On 10/16/24, Defendant served <u>unverified</u> responses. Plaintiff met and conferred, without success; Defense counsel indicated at the time that he had lost contact with his client. (Camilleri Decl., ¶¶ 2-8, Exs. A-E.)